

25CHCV03178 25CHCV03178

County: los-angeles

Division: Civil Law and Motion

Department: F46

Hearing date: 2026-08-04

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Case Number: 25CHCV03178 Hearing Date: August 4, 2026 Dept: F46

Dept. F-46

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MOTION TO BE

RELIEVED AS COUNSEL

Motion filed on May 26, 2026.

Moving Party: Arpi Galstian, Esq., counsel for Plaintiff Bryan Cioffi.

Responding Party: N/A.

Notice: Defective.

Relief: Arpi Galstian, Esq. to be relieved as counsel for Plaintiff Bryan Cioffi.

Ruling: Continued to September 1, 2026.

BACKGROUND

On September 5, 2025, Plaintiff Bryan Cioffi filed this action. On March 17, 2026, the Court set the Final Status Conference for October 29, 2027, and the Jury Trial for November 8, 2027. On May 26, 2026, Plaintiff's counsel, Arpi Galstian, Esq., filed the instant motion to be

relieved as counsel on Judicial Council forms MC-051, MC-052, and MC-053. On July 10, 2026, Defendant filed a motion to compel Plaintiff's deposition, which is set for hearing on September 10, 2026. No timely opposition to the motion to be relieved was filed.

DISCUSSION

The Court has discretion to allow an attorney to withdraw, and such a motion should be granted, provided that there is no prejudice to the client and it does not disrupt the orderly process of justice. (See *Ramirez v. Sturdevant* (1994) 21 Cal.App.4th 904, 915 (*Ramirez*); *People v. Prince* (1968) 268 Cal.App.2d 398, 403–407.)

A motion to be relieved as counsel must be made on Judicial Council Form MC-051 (Notice of Motion and Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (Cal. Rules of Court, rule 3.1362, subds. (a), (c), (e).) The requisite forms must be served "on the client and on all other parties who have appeared in the case." (Cal. Rules of Court, rule 3.1362, subd. (d).) The proposed order must specify all hearing dates scheduled in the action, including the trial date, if known. (Cal. Rules of Court, rule 3.1362, subd. (e).)

Grounds for permitting an attorney to withdraw from representation include a breakdown in the attorney-client relationship. (*Estate of Falco* (1987) 188 Cal.App.3d 1004, 1014 (*Falco*).)

Here, counsel states that there has been an irreparable breakdown in the attorney-client relationship involving a lack of trust, communication, and cooperation, which has rendered continued representation unreasonably difficult. The Court finds counsel has shown sufficient grounds to withdraw.

However, no proof of service has been filed establishing service of the moving papers on Plaintiff and all other parties who have appeared in the action, as required by California Rules of Court, rule 3.1362(d). In addition, the MC-052 and proposed MC-053 do not reflect the September 10, 2026 hearing on Defendant's motion to compel Plaintiff's deposition. The proposed MC-053 therefore does not identify all currently scheduled hearings as required by rule 3.1362(e). A continuance is warranted to permit counsel to provide updated forms and establish proper service.

CONCLUSION

The hearing on the Motion to Be Relieved as Counsel is
CONTINUED to September 1, 2026, at 8:30 a.m. in Department F-46.

Counsel must file and serve updated forms MC-051, MC-052,
and MC-053 reflecting all currently scheduled hearings and the trial date,
including the September 10, 2026 hearing on Defendant's motion to compel
Plaintiff's deposition, the October 29, 2027 Final Status Conference, and the
November 8, 2027 Jury Trial. Counsel must also file proof of service
establishing service of the updated forms on Plaintiff and all other parties
who have appeared in the action.